

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil
Judge Pro Tem Peter MacLaren
Courtroom 9

627 W. 21st Street, Merced

Thursday, July 23, 2026
10:00 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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25CV-06342	TD Bank USA, N.A. vs. Joseph Ragus
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Order to Show Cause Why Sanctions Should Not Be Imposed on Plaintiff's Counsel

Appear to show cause why monetary sanctions should not be imposed on Plaintiff's counsel of record for failing to attend the case management conference on May 8, 2026, and failure to file a case management conference statement.

Case Management Conference

Appearance required.

26CV-00583	[Parties' names withheld pursuant to CCP § 1161.2(a)(1)]
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Motion to Set Aside Default and Default Judgment

Defendant's motion to set aside the default and vacate the default judgment is DENIED due to lack of notice. Defendant has not filed proof of service to show Plaintiff received notice of the motion and no written opposition has been filed by Plaintiff indicating waiver of notice. Even if Defendant had provided notice to Plaintiff, the Court notes

Defendant has not met his burden of showing that his failure to file a timely response in this action to prevent the entry of default and default judgment in April 2026 was due to his “mistake, inadvertence, surprise, or excusable neglect.” (See Code Civ. Proc., § 473, subd. (b).) The Court further notes that the clerk’s judgment by default entered on April 17, 2026, was for possession of the premises only and did not include an award of money damages.

26CV-02479

[Parties’ names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial: Unlawful Detainer

Appearance required.
